

ORIGINAL

COURT OF COMMON PLEAS

HAMILTON COUNTY, OHIO

TINA M. NGUYEN
2686 Jonrose Avenue
Cincinnati, Ohio 45239

CASE NO. **A 2300549**

(Judge _____)

and

COMPLAINT & JURY DEMAND

LUC D. NGUYEN
2686 Jonrose Avenue
Cincinnati, Ohio 45239

Plaintiffs,

v.

ROBERT J. TUELLER
34326 N. 7750 E.
Fairview, Utah 84629

REGULAR MAIL WAIVER

and

GARRISON TRANSPORTATION
SERVICES, INC.
1510 S. 3600 W.
Salt Lake City, Utah 84104



D137366901 INI

Please Serve Agent:

Stephen G. Brown
1510 S. 3600 W.

Salt Lake City, Utah 84104

REGULAR MAIL WAIVER

and

STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY

REGULAR MAIL WAIVER

Please Serve Agent:

Corporation Service Company
3366 Riverside Dr. #103
Upper Arlington, Ohio 43221

Defendants. :

FILED

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CLERK OF COURTS
HAMILTON COUNTY, OH
COMMON PLEAS

Now come plaintiffs, Tina Nguyen and Luc Nguyen, by and through counsel, and for their cause of action, state as follows:

1. At all times relevant herein, plaintiffs, Tina Nguyen and Luc Nguyen, are married and reside at 2686 Jonrose Avenue, Cincinnati, Ohio 45239.
2. At all times relevant herein, defendant, Robert Tueller, resides at 34326 N. 7750 E., Fairview, Utah 84629.
3. At all times relevant herein, defendant, Garrison Transportation Services, Inc., is a company, corporation or other business entity, with its principal place of business in Salt Lake City, Utah, is licensed to do business in the State of Ohio and, among other things, provides trucking and freight services to the general public.
4. At all times relevant herein, and upon information and belief, defendant, Robert Tueller is and/or was an agent, servant and/or employee of defendant, Garrison Transportation Services, Inc.
5. On or about February 17, 2021, at approximately 9:45 a.m., plaintiff, Tina Nguyen, was operating a 2014 Toyota Camry in an Easterly direction on State Route 562 (Norwood Lateral) in Norwood, Hamilton County, Ohio.
6. At said time and said place, defendant, Robert Tueller, was operating a 2021 Peterbilt semi-tractor trailer, in the course and scope of his employment with defendant, Garrison Transportation Services, Inc., and negligently operated said motor vehicle into the motor vehicle being operated by the plaintiff, Tina Nguyen.

COUNT ONE - NEGLIGENCE

7. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
8. As a direct and proximate result of the negligence of the defendant, Robert Tueller, plaintiff, Tina Nguyen, sustained injuries to her neck, back, elbow, shoulders, head and other parts of her body, some of which are permanent in nature.
9. As a further direct and proximate result of the negligence of the defendant, Robert Tueller, plaintiff, Tina Nguyen, sustained great pain, suffering and emotional distress and will continue to do so in the future as a result of this accident. Additionally, as a result of this accident, plaintiff, Tina Nguyen, has been restricted in her usual activities.
10. As a further direct and proximate result of the negligence of the defendant, Robert Tueller, plaintiff, Tina Nguyen, incurred medical and hospital expenses in excess of \$50,000.00 and expects to incur further such expenses in the future.
11. As a further direct and proximate result of the negligence of the defendant, Robert Tueller, plaintiff, Tina Nguyen, has lost earnings in the past and will suffer further such losses in the future, her earning capacity having been permanently impaired.

COUNT TWO – STATUTORY VIOLATIONS

12. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.

13. Based on information and belief, defendant, Robert Tueller, violated state and federal statutes and regulations, including but not limited to:
 - a. Failing to stay in marked lanes in violation of ORC 4511.33;
 - b. Failing to maintain reasonable control of his semi-trailer in violation of ORC 4511.202;
 - c. Failing to safely and properly change lanes in violation of ORC 4511.27;
 - d. Failing to keep a proper lookout;
 - e. Driving carelessly;
 - f. Driving the semi-trailer while distracted;
 - g. Driving the semi-trailer while fatigued;
 - h. Exceeding hours of service limitations in violation of 49 CFR 395.1(g);
 - i. Failing to take appropriate evasive action;
 - j. Failing to properly inspect the semi-trailer in violation of 49 CFR §396.11;
 - k. Failing to maintain the semi-trailer in proper repair in violation of 49 CFR §396.1; 1.
 - l. Crashing into plaintiff, Tina Nguyen's, vehicle; and,
 - m. Violations as enumerated in 49 C.F.R. §§ 350-399, O.A.C. 4901:2-5-02 through 4901:2-5-08. 15.
14. Defendant, Robert Tueller's, statutory violations directly and proximately caused plaintiff, Tina Nguyen's, damages and injuries.

15. Defendant, Robert Tueller, is negligent *per se* based on these statutory and regulatory violations.

COUNT THREE – PUNITIVE DAMAGES

16. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
17. Defendant, Robert Tueller's, actions demonstrate a conscious disregard for the rights and safety of plaintiff, Tina Nguyen, and the rest of the motoring public, acting with reckless indifference to the consequences to others despite being aware of his conduct, and knowing there was a great probability of causing substantial harm.
18. Accordingly, plaintiffs demand punitive damages against defendant, Robert Tueller.

COUNT FOUR – RESPONDEAT SUPERIOR

19. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
20. Defendant, Garrison Transportation Services, Inc., is responsible for the acts and/or omissions of its agents, servants and/or employees, including, but not limited to, defendant, Robert Tueller, under the doctrine of *Respondeat Superior*.
21. As a direct and proximate result of the acts and/or omissions of defendant, Robert Tueller, while in the course and scope of his employment with defendant, Garrison Transportation Services, Inc., plaintiff, Tina Nguyen sustained damages hereinbefore described in Count One.

COUNT FIVE – STRICT LIABILITY

22. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
23. Upon information and belief, defendant, Garrison Transportation Services, Inc., is the registered owner of the semi-trailer involved in this collision and is therefore responsible for the acts of defendant, Robert Tueller.

COUNT SIX – NEGLIGENCE

24. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
25. Defendant, Garrison Transportation Services, Inc., had a duty to act reasonably in hiring, instructing, training, supervising and retaining its drivers and other employees and agents, including defendant, Robert Tueller, and to promulgate and enforce policies, procedures, and rules to ensure that its drivers and vehicles were reasonably safe.
26. Defendant, Garrison Transportation Services, Inc., had a duty to exercise reasonable care in entrusting its vehicles and equipment to responsible, competent, and qualified drivers.
27. Based on information and belief, defendant, Garrison Transportation Services, Inc., failed in the abovementioned duties and was therefore negligent.

28. Defendant, Garrison Transportation Services, Inc.'s, negligence was the direct and proximate cause of plaintiff, Tina Nguyen's, injuries and damages hereinbefore described in this Complaint.

COUNT SEVEN – STATUTORY VIOLATIONS

29. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
30. Defendant, Garrison Transportation Services, Inc., violated state and federal statutes and regulations, including but not limited to 49 C.F.R. §§ 350-399 and O.A.C. 4901:2-5-02 through 4901:2-5-08. These regulations were promulgated to protect the safety of a class of people that includes plaintiff, Tina Nguyen. Specifically, based on information and belief, defendant, Garrison Transportation Services, Inc., breached the above-mentioned duties and was therefore negligent in one or more of, but not limited to, the following ways:
- a. Failing to verify and ensure that Defendant, Robert Tueller, operated the semi-trailer in a reasonably safe manner and abided by all laws governing the safe operation of commercial motor vehicles, in violation of 49 C.F.R. §392.1;
 - b. Failing to properly train and instruct Defendant, Robert Tueller, and its drivers on defensive driving, safe driving, and proper lookout in violation of 49 C.F.R. §383.111;

- c. Failing to properly supervise Defendant, Robert Tueller, and identify dangerous routes and driving behavior that could have been corrected to avoid this crash;
 - d. Failing to properly inspect and maintain the semi-trailer in violation of [49 CFR §396.11](#) and [49 CFR §396.1](#); and/or
 - e. Knowingly failing to promote and enforce systems and procedures for the safe operation of motor vehicles and, thus, creating a zone and culture of risk that constituted a dangerous mode of operation reasonably anticipated to cause injury and/or death to the traveling public, including the plaintiff, Tina Nguyen.
31. Defendant, Garrison Transportation Services, Inc.'s, statutory violations directly and proximately caused plaintiff, Tina Nguyen's, damages and injuries as hereinbefore described in this Complaint.
32. Defendant, Garrison Transportation Services, Inc., is negligent per se based on these statutory and regulatory violations.

COUNT EIGHT – PUNITIVE DAMAGES

33. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
34. Defendant, Garrison Transportation Services, Inc.'s, actions demonstrate a conscious disregard for the rights and safety of plaintiff, Tina Nguyen, and the rest of the motoring public, acting with reckless indifference to the consequences to others despite being aware of its conduct, and knowing there was a great probability of causing substantial harm.

35. Accordingly, plaintiff, Tina Nguyen, demands punitive damages against Defendant, Garrison Transportation Services, Inc.

COUNT NINE – LOSS OF CONSORTIUM

36. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
37. As a further direct and proximate result of defendants, Robert Tueller and Garrison Transportation Services, Inc.'s, negligence, and the injuries resulting to plaintiff, Tina Nguyen, therefrom, plaintiff, Luc Nguyen, individually, suffered the loss of society, services, companionship and affection of his spouse, and will continue to suffer the loss of such society, services, companionship and affection in the future.

COUNT TEN – UM/UIM CLAIMS

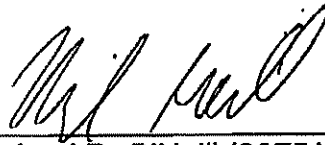
38. Plaintiffs refer to and incorporate the preceding allegations as if fully rewritten herein.
39. Plaintiffs bring this action for uninsured/underinsured motorist coverage pursuant to [Ohio Revised Code Sections 2721.01 through 2721.05](#).
40. Defendant, State Farm Mutual Automobile Insurance Company is a company authorized to do business and sell automobile insurance within the State of Ohio.
41. On or about February 17, 2021, plaintiff, Tina Nguyen, was injured and sustained damages as a result of the negligent misconduct of defendant, Robert Tueller, as described herein, and defendant, Robert Tueller, was an uninsured and/or underinsured motorist.

42. At the time and date of the aforementioned accident, plaintiff, Tina Nguyen, was insured by defendant, State Farm Mutual Automobile Insurance Company, under policy no. 896 7588-E16-35.
43. Included in State Farm Mutual Automobile Insurance Company's policy no. 896 7588-E16-35 was a provision insuring plaintiffs against bodily injuries resulting from accidents with uninsured/underinsured motorists.
44. Defendant, State Farm Mutual Automobile Insurance Company, is contractually obligated to compensate plaintiff, Tina Nguyen, for those injuries and damages contained in the Complaint in an amount at least equal to the limits of said policy.

WHEREFORE, plaintiffs, Tina Nguyen and Luc Nguyen, demand judgment against defendants, Robert Tueller and Garrison Transportation Services, Inc., in excess of Twenty Five Thousand Dollars (\$25,000.00), plus interest, punitive damages and court costs herein; and, alternatively, pursuant to Civil Rule 54(C) of the Ohio Rules of Civil Procedure, plaintiff, Tina Nguyen, under Count One of the Complaint, demands judgment against defendant, Robert Tueller, in the amount of Seven Hundred and Fifty Thousand Dollars (\$750,000.00), plus interest, costs and other such relief to which she is entitled herein, and, plaintiff, Tina Nguyen, under Count Two of the Complaint, demands judgment against defendant, Robert Tueller, in the amount of Seven Hundred and Fifty Thousand Dollars (\$750,000.00), plus interest, costs, and other such relief that she is entitled to herein, and, plaintiff, Tina Nguyen, under Count Three of the Complaint, demands punitive damages in an amount to be determined at

trial and other such relief that she is entitled to herein, and under Count Four of the Complaint, plaintiff, Tina Nguyen, demands judgment against defendant, Garrison Transportation Services, Inc.'s in the amount of Seven Hundred and Fifty Thousand Dollars (\$750,000.00), plus interest, costs, and other such relief that she is entitled to herein, and under Count Five of the Complaint, plaintiff, Tina Nguyen, demands judgment against defendant, Garrison Transportation Services, Inc.'s in the amount of Seven Hundred and Fifty Thousand Dollars (\$750,000.00), plus interest, costs, and other such relief that she is entitled to herein, and under Count Six of the Complaint, plaintiff, Tina Nguyen, demands judgment against defendant, Garrison Transportation Services, Inc.'s in the amount of Seven Hundred and Fifty Thousand Dollars (\$750,000.00), plus interest, costs, and other such relief that she is entitled to herein, and under Count Seven of the Complaint, plaintiff, Tina Nguyen, demands judgment against defendant, Garrison Transportation Services, Inc.'s in the amount of Seven Hundred and Fifty Thousand Dollars (\$750,000.00), plus interest, costs, and other such relief that she is entitled to herein, and under Count Eight of the Complaint, plaintiff, Tina Nguyen, demands punitive damages in an amount to be determined at trial and other such relief that she is entitled to herein, and under Count Nine of the Complaint, plaintiff, Luc Nguyen, demands judgment against defendants, Robert Tueller and Garrison Transportation Services, Inc.'s in the amount of One Hundred Thousand Dollars (\$100,000.00), plus interest, costs, and other such relief that he is entitled to herein and under Count Ten of the Complaint, plaintiffs, Tina and Luc Nguyen demand judgment against defendant,

State Farm Mutual Automobile Insurance Company, for any and all benefits available under any applicable policies of insurance, plus interest, costs, and other such relief that plaintiffs are entitled to herein.



Michael D. O'Neill (0075195)
Gary F. Franke (0029793)
GARY F. FRANKE CO., L.P.A.
Trial Attorneys for the Plaintiffs
120 East 4th Street - Suite 1040
Cincinnati, Ohio 45202
(513) 564-9222

JURY DEMAND

The Plaintiffs herein demand that the above-captioned matter be tried to a jury.



Michael D. O'Neill
Attorneys at Law